

for life should only keep down the interest, for the natural division was, that he who had the *corpus* should take the burthen, and he who had only the fruit should pay to the extent of the fruit of the debt: but leases, whether for lives or years, were in their nature temporary, and therefore the position that the tenant for life was bound to pay the interest was to be understood with this qualification, that he was further bound to contribute a due proportion of the principal according to the benefit he derived from the renewed interest" (e).

4. **Court will not act on speculative calculations.** — It might be thought reasonable that the proportion of the expense to fall upon the tenant for life should be regulated by his actual age and *probable* duration of life; but it has been said that accident might render such a course unjust to the one party or the other, according as the tenant for life happened to live a longer or shorter period than was allowed by the calculation (f).

5. **Present rule of contribution.** — The rule now in operation was first clearly laid down by Lord Thurlow in *Nightingale v. Lawson* (g), a case, said Lord Eldon (who was one of the counsel in it) to which, from the intricacy of the subject, the reports have failed to do justice (h).

Nightingale v. Lawson. — The circumstances may be [*373] briefly stated as follows: — A widow, * tenant for life of a term which had twelve years to run, renewed for a further term of twenty-eight years, to commence from the expiration of the twelve years, and afterwards renewed for the additional term of fourteen years to commence from the expiration of the twenty-eight years. The widow lived through the original term of twelve years, and through nine of the renewed term of twenty-eight years. The question was raised after the death of the widow, in what proportions the tenant for life and the remainderman should contribute to the fines. The following points were resolved by Lord

(e) *White v. White*, 9 Ves. 560.

(f) *Earl of Shaftesbury v. Duke of Marlborough*, 2 M. & K. 119, *per*

Sir J. Leach; and see *Bennett v. Colley*, 2 M. & K. 234.

(g) 1 B. C. C. 440.

(h) *White v. White*, 9 Ves. 556.